



CHAPTER 10.

An Act to extend, until the thirty-first day of March A.D. 1937.
nineteen hundred and thirty-seven, the period in
respect of which grants are to be paid to local
authorities out of moneys provided by Parlia-
ment under section one of the Unemployment
Assistance (*Temporary Provisions*) (No. 2) Act,
1935; to provide for the adjustment of such
grants between local authorities; and to
amend section forty-five of the Unemployment
Assistance Act, 1934. [18th February 1937.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1. Section one of the Unemployment Assistance Amendment
(*Temporary Provisions*) (No. 2) Act, 1935 (which as of 25 & 26
amended by the Unemployment Assistance (*Temporary* Geo. 5. c. 22,
Provisions) (*Extension*) Act, 1936, requires the payment s. 1
of grants to local authorities out of moneys provided 26 Geo. 5. &
by Parliament in consequence of the postponement of 1 Edw. 8.
the second appointed day for the purposes of the Unem- c. 7.
ployment Act, 1934, in respect of the period beginning 24 & 25
with the first day of March nineteen hundred and thirty- Geo. 5. c. 29.
five and ending with the thirty-first day of March
nineteen hundred and thirty-six, or with the day before
the date to be appointed as the second appointed day
for the purposes of the last-mentioned Act, whichever

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(Temporary Provisions) (Amendment) 1 GEO. 6.]
Act, 1937.

A.D. 1937. — is the earlier) shall have effect as if for the reference in subsection (1) thereof to the thirty-first day of March nineteen hundred and thirty-six, there were substituted a reference to the thirty-first day of March nineteen hundred and thirty-seven, and as if the words from “ or with the day ” to the end of the subsection were omitted therefrom.

Adjustment
of grants.

2.—(1) If the Minister of Health is satisfied that the grants payable to councils under the said section one of the *Unemployment Assistance (Temporary Provisions) (No. 2) Act, 1935* would, in the case of some councils, be insufficient to meet the expenditure incurred by the council in connection with the provision of relief to which this section applies, and in the case of other councils, be more than sufficient to meet the expenditure so incurred by the council, the Minister may make such adjustments in the instalments of the grants payable in respect of the period beginning with the first day of April nineteen hundred and thirty-six and ending with the thirty-first day of March nineteen hundred and thirty-seven, as he thinks fit for the purpose of increasing the grants in cases where they would be insufficient, by reducing the excess in cases where they would be more than sufficient, to meet the expenditure aforesaid :

Provided that—

- (a) the Minister shall not make any increases or reductions under this section except after consultation with such associations as appear to him to represent the councils concerned and with any local authority with whom consultation appears to him to be desirable; and
- (b) the amounts of any such increases and reductions shall be so calculated as not to affect the aggregate amount of the grants payable under the said section one.

(2) This section applies to relief of the poor provided by the council of a county or county borough in the period beginning with the first day of March nineteen hundred and thirty-five and ending with the thirty-first day of March nineteen hundred and thirty-seven, being relief which they would not have provided if the *Unemployment Assistance Board* had been entitled

throughout that period to take into consideration applications for allowances which they are not entitled under the principal Act to take into consideration before the second appointed day; and in estimating for the purposes of this section the expenditure incurred by any council in the provision of that relief, the same deduction shall be made therefrom as is made, by virtue of proviso (a) to subsection (3) of the said section one, in calculating the grant payable to the council under that section. A.D. 1937.

3.—(1) Subsections (2) (3) and (4) of section forty-five of the Unemployment Assistance Act, 1934 (which as amended by the Unemployment Assistance (Temporary Provisions) (No. 2) Act, 1935, makes provision as to the contributions to be paid to the Unemployment Assistance Board by the councils of counties and county boroughs in each of the areas in the period beginning on the first day of April nineteen hundred and thirty-five and ending on the thirty-first day of March nineteen hundred and thirty-seven) shall cease to have effect, and no contributions shall be payable under that section in that period : Amendment of 24 & 25 Geo. 5. c. 29, s. 45.

Provided that the deductions to be made under subsection (3) of section one of the Unemployment Assistance (Temporary Provisions) (No. 2) Act, 1935, from the grants payable under that section, and the deductions to be made under subsection (2) of the last foregoing section, shall be calculated as if this section had not been passed.

(2) Subsection (5) of the said section forty-five shall have effect as if for the words "mentioned in subsection (2) of this section" there were therein substituted the words "ending with the thirty-first day of March nineteen hundred and thirty-seven."

4. This Act shall apply to Scotland subject to the following modifications :— Application to Scotland.

(a) for any reference to the Minister of Health there shall be substituted a reference to the Secretary of State;

(b) for any reference to a county borough there shall be substituted a reference to a large burgh within the meaning of the Local Government (Scotland) Act, 1929; 19 & 20 Geo. 5. c. 25.

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(c) any references to a county shall, in the case of the counties of Perth and Kinross and of the counties of Moray and Nairn, be construed as a reference to the combined county of Perth and Kinross or the combined county of Moray and Nairn, as the case may be, and any reference to the council of a county shall be construed accordingly.

Short title,
citation and
extent.

5.—(1) This Act may be cited as the Unemployment Assistance (Temporary Provisions) (Amendment) Act, 1937, and this Act and the Unemployment Assistance Acts, 1934 to 1936, may be cited together as the Unemployment Assistance Acts, 1934 to 1937.

(2) This Act shall not extend to Northern Ireland.

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